

Risalah Tahkīm al-Qawānīn (Treatise on Implementing the Laws)

**By Shaykh Al Allamah, Mufti of the Lands of Saudi Arabia
Muhammad Ibn Ibraheem Al Al-Shaykh رحمه الله
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بسم الله الرحمن الرحيم

Shaykh Muhammad Ibn Ibraheem, رحمه الله تعالى , said in his Risalah Tahkīm al-Qawānīn : “Indeed, among the manifest forms of major Kufr is to place the accursed law in the position of that with which the Trustworthy Spirit (Jibril) descended upon the heart of Muhammad ﷺ, so that he might be among the warners, in a clear Arabic tongue, to judge by it between all people, and to refer to it when disputing parties differ.

This is a contradiction of and defiance against the statement of Allah, Mighty and Majestic: {And if you disagree over anything, refer it to Allah and the Messenger, if you should believe in Allah and the Last Day. That is the best [way] and best in result} [al-Nisā’ 4:59].

Allah, Glorified and Exalted is He, has negated Imaan from those who do not make the Prophet ﷺ the judge in whatever disputes arise between them, negating it emphatically by repeating the negation and by an oath. He, the Exalted, said: {But no, by your Lord, they will not [truly] believe until they make you, [O Muhammad], judge concerning that over which they dispute among themselves and then find within themselves no discomfort from what you have judged and submit in [full, willing] submission} [al-Nisā’ 4:65].

And Allah, Glorified and Exalted, did not deem sufficient from them merely making Messenger ﷺ the judge; rather, they must add to that the absence of any discomfort within themselves regarding his judgment, as He, Glorious is His status, says: (then find within themselves no discomfort from what you have judged) [al-Nisā’ 4:65]. And ‘discomfort’ means constriction. Rather, their hearts must be expansive toward that, free from anxiety and agitation.

And He, the Exalted, did not suffice here with these two matters either, until they add to them submission: and that is complete compliance with his judgment ﷺ, such that they relinquish here any attachment of the soul to this matter and surrender it to the True Judge with the fullest submission.

For this reason, He emphasized it with the emphatic verbal noun, namely His statement, Glorious is His status: ‘in [full, willing] submission’, clarifying that mere submission is not sufficient here; rather, there must be absolute submission. And contemplate what is contained in the first verse, namely His statement, the Exalted: {And if you disagree over anything, refer it to Allah and the Messenger, if you should believe in Allah and the Last Day. That is the best [way] and best in result.} [al-Nisā’ 4:59]. How He mentioned the indefinite noun, namely His statement ‘anything’, in the context of the condition, which is His statement, Glorious is His status: {And if you disagree}, conveying generality with regard to whatever can be conceived as being subject to dispute, both in kind and in extent.

Then contemplate how He made that a condition for the attainment of Imaan in Allah and the Last Day, by His statement: {if you should believe in Allah and the Last Day}. Then He, Glorious is His status, said: {That is the best [way]}. Thus, anything which Allah describes as being good is something that evil can never approach; rather, it is pure good, both immediately and in the future. Then He said: {and best in result}, meaning: in its ultimate consequence in this world and the Hereafter. This therefore indicates that referring disputes to other than the Messenger ﷺ is pure evil and has the worst consequence in this world and the Hereafter, the opposite of what the hypocrites say: {We intended nothing but good conduct and accommodation} [al-Nisā’ 4:62], and their statement: {We are but reformers} [al-Baqarah 2:11].

And for this reason, Allah refuted them, saying: {Unquestionably, it is they who are the corrupters, but they perceive [it] not} [al-Baqarah: 12]. And it is the opposite of what the proponents of man-made laws hold when they judge that the world is in need of the law, indeed, in dire necessity of resorting to it for judgment. This is nothing but pure evil suspicion regarding what the Messenger ﷺ brought, and sheer belittling of the explanation of Allah and His Messenger, and judging it to be insufficient for people when disputes arise, and that it leads to an evil outcome in this world and the Hereafter. Indeed, this is necessarily entailed by their position.

And contemplate also the generality contained in the second verse, in His statement: {concerning that over which they dispute among themselves}. For the relative pronoun together with its relative clause is among the forms indicating generality according to the scholars of legal theory and others. This generality and comprehensiveness applies with respect to general and types, just as it applies with respect to quantity. Thus, there is no distinction here between one type and another, just as there is no distinction between something little and something great.

Allah has negated Imaan from the one among the hypocrites who desires to seek judgment from other than what the Messenger ﷺ brought, as He, the Exalted, said: {Have you not seen those who claim to have believed in what was revealed to you, [O Muhammad], and what was revealed before you? They wish to refer legislation to Taghut, while they were commanded to reject it; and Satan wishes to lead them far astray} [al-Nisā': 60]. For His statement, Mighty and Majestic is He, {claim} is a denial of their claim of Imaan, for seeking judgment from other than what the Prophet ﷺ brought cannot coexist with Imaan in a servant's heart at all; rather, one of the two negates the other. And Ṭāghūt is derived from ṭughyān, which is transgression, meaning exceeding the limit. Thus, everyone who judges by other than what the Messenger ﷺ brought, or seeks judgment from other than what the Prophet ﷺ brought, has judged by the Ṭāghūt and sought judgment from it.

This is because it is the right of everyone to judge only by what the Prophet ﷺ brought, and not contrary to it. Likewise, it is the right of everyone to seek judgment from what the Prophet ﷺ brought. Therefore, whoever judges contrary to it, or seeks judgment from something contrary to it, has transgressed and exceeded his limit, whether in judging or in seeking judgment and thereby becomes a Ṭāghūt because of his exceeding his limit.

And contemplate His statement, Mighty and Majestic is He: {while they were commanded to reject it}. From this, you can recognize the opposition of the proponents of man-made laws and their desire to go against what Allah has intended from them in this regard. For what is legislated for them, and what they have been commanded to worshipfully adhere to, is: rejecting the Ṭāghūt, not making it the judge. ... {But those who wronged changed [those words] to a statement other than that which had been said} [al-Baqarah: 59]. Then contemplate His statement: {and Satan wishes to lead them far astray} [al-Nisā': 60], how it indicates that this is misguidance, while these proponents of man-made laws regard it as guidance. Likewise, the verse indicates that it is from the desire of Satan, contrary to what the proponents of man-made laws imagine regarding their distance from Satan and that it contains the welfare of mankind.

Thus, according to their claim, the objectives of Satan would be the welfare of mankind, while the will of the Most Merciful and that with which the master of the descendants of Adnan ﷺ was sent are excluded from this description and removed from this matter. And Allah, the Exalted, said, condemning this kind of people, affirming that they seek the judgments of Jahiliyyah, and clarifying that there is no judgment better than His judgment: {Then is it the judgement of [the time of] ignorance they desire? But who is better than Allah in judgement for a people who are certain [in Imaan]} [al-Mā'idah: 50].

So contemplate this noble verse and how it demonstrates that the division of judgment is twofold, and that after the judgment of Allah, the Exalted, there is nothing but the judgment of Jahiliyyah, whether they like it or not. Rather, they are worse in condition and more false in speech than them. This is because the people of Jahiliyyah had no contradiction regarding this matter, whereas the proponents of man-made laws are contradictory, claiming to believe in what the Messenger ﷺ brought while contradicting it and wanting to take a path between the two. Allah, the Exalted, said concerning people like these: {Those are the disbelievers, truly. And We have prepared for the disbelievers a humiliating punishment} [al-Nisā': 151].

Then look at how this noble verse refuted the proponents of man-made laws concerning what they claim regarding the excellence of the refuse of their minds and the shavings of their thoughts, by His statement, Mighty and Majestic is He: {But who is better than Allah in judgement for a people who are certain [in Imaan]}

Al-Ḥāfiẓ Ibn Kathīr said in his *Tafsīr* of this verse: “Allah denounces the one who departs from the perfect judgment of Allah, which encompasses every good and prohibits every evil, and turns instead to other opinions, whims, and conventions that men have devised without any basis in the Law of Allah, just as the people of Jahiliyyah used to judge by their misguidances and ignorances, which they devised according to their opinions and whims; and just as the Tatars judge by the royal policies taken from their king, ‘Genghis Khan,’ who composed for them a book containing rulings that he had taken from various laws, from Judaism, Christianity, the Islamic religion, and others. It contained many rulings that he had taken merely from his own opinion and desire, and it became among his descendants an established law that was followed.

They gave it precedence over judgment by the Book of Allah and the Sunnah of His Messenger ﷺ. Whoever does that is a Kafir who must be fought until he returns to the judgment of Allah and His Messenger, and he must not make anything other than it the judge, whether in a small matter or a great one. Allah, the Exalted, said: {Then is it the judgement of [the time of] ignorance they desire?}, meaning: do they seek and desire it, and turn away from the judgment of Allah. {But who is better than Allah in judgement for a people who are certain [in Imaan]} Meaning: Who is more just than Allah in His judgment, for the one who understands Allah's Law, believes in it, has certainty, and knows that Allah is the Wisest of judges and more merciful to His creation than a mother is to her child? Indeed, He, the Exalted, is the One who knows all things, is capable of all things, and is just in all things." (End of the statement of al-Hāfiẓ Ibn Kathīr.)

And He, Glorious and Exalted is His status, had said before that, addressing His Prophet Muhammad ﷺ: {So judge between them by what Allah has revealed and do not follow their inclinations away from what has come to you of the truth} [al-Mā'idah: 48]. And the Exalted said: {And judge, [O Muhammad], between them by what Allah has revealed and do not follow their inclinations and beware of them, lest they tempt you away from some of what Allah has revealed to you} [al-Mā'idah: 49]. And Allah, the Exalted, gave His Prophet Muhammad ﷺ the choice between judging between the Jews and turning away from them if they came to him for that: {So if they come to you, [O Muhammad], judge between them or turn away from them. And if you turn away from them – never will they harm you at all. And if you judge, judge between them with justice. Indeed, Allah loves those who act justly} [al-Mā'idah: 42]. And qisṭ means justice, and there is no true justice except the judgment of Allah and His Messenger.

Judging contrary to it is injustice, Dhulm (wrongdoing), misguidance, Kufr and Fusūq (disobedience). For this reason, Allah, the Exalted, said immediately thereafter: {And whoever does not judge by what Allah has revealed – then it is those who are the disbelievers} [al-Mā'idah: 44], {And whoever does not judge by what Allah has revealed—then it is those who are the wrongdoers} [al-Mā'idah: 45], {And whoever does not judge by what Allah has revealed—then it is those who are the defiantly disobedient} [al-Mā'idah: 47].

So look at how the Exalted recorded against those who judge by other than what Allah has revealed Kufr, Dhulm (wrongdoing), and Fusūq (disobedience). It is impossible that Allah, Glorified is He, would call the one who judges by other than what Allah has revealed a Kafir while he is not actually a Kafir. Rather, he is absolutely a Kafir, either Kufr of action or Kufr of belief. And what has been reported from Ibn 'Abbās رضي الله عنهما in the Tafsir of this ayah, through the narration of Ṭāwūs and others, indicates that the one who judges by other than what Allah has revealed is a Kafir: either Kufr of belief, which expels one from the religion, or Kufr of action, which does not expel one from the religion.

As for the first: namely, Kufr of belief, it has several types. The first of them is that the ruler who judges by other than what Allah has revealed denies the legitimacy and rightfulness of the judgment of Allah and His Messenger. This is the meaning of what has been narrated from Ibn 'Abbās, and what Ibn Jarīr selected: that this means denying what Allah has revealed of the legal ruling. There is no disagreement concerning this among the Ahl Al Ilm, for among the established and agreed-upon principles among them is that whoever denies a fundamental principle of the religion, or a subsidiary matter upon which there is Ijma, or rejects something that the Messenger ﷺ brought with certainty, then he is a Kafir with Kufr that expels him from the religion.

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The second: that the ruler who judges by other than what Allah has revealed does not deny that the judgment of Allah and His Messenger is true, but he believes that the judgment of someone other than the Messenger ﷺ is better than his judgment, more complete, and more comprehensive in what people need of judgment between them when disputes arise, either absolutely or with regard to newly occurring matters that have arisen due to the development of time and changing circumstances. This also, without doubt, is Kufr, because he has preferred the judgments of created beings, which are nothing but the refuse of minds and the dregs of thoughts, over the judgment of the All-Wise, the Praiseworthy.

The judgment of Allah and His Messenger does not differ in itself with the changing of times, the development of circumstances, or the emergence of new events. For there is no case that occurs, whatever it may be, except that its ruling is found in the Book of Allah, the Exalted, and the Sunnah of His Messenger ﷺ, either explicitly, apparently, by deduction, or in some other manner. Whoever knows it knows it, and whoever is ignorant of it is ignorant of it. What the scholars have mentioned regarding the changing of a fatwa due to changing circumstances does not mean what those who have little share of knowledge, or lack knowledge of the sources and underlying causes of the rulings, have imagined: that its meaning is according to whatever conforms to their animalistic lustful desires, worldly interests, and erroneous conceptions. For this reason, you find them defending these desires and making the textual evidences subordinate and compliant to them whenever they are able, and consequently distorting words from their proper contexts.

Thus, the meaning intended by the scholars when they speak of the change of a fatwa due to changing circumstances and times is: “that which takes into consideration the established principles of the Sharī‘ah, the recognized underlying causes, and the interests whose very kind is intended by Allah, the Exalted, and His Messenger ﷺ.” It is well known that the proponents of man-made laws are completely removed from this, and that they say only what conforms to their desires, whatever those desires may be. And reality is the most truthful witness.

The third: that he does not believe it to be better than the judgment of Allah and His Messenger, but rather believes that it is equal to it. This is like the two types preceding it, in that it constitutes Kufr that expels one from the religion, because of what this entails of equating the created being with the Creator, and contradicting and opposing His statement, Mighty and Majestic is He: {There is nothing like unto Him} [al-Shūrā: 11], and similar noble verses which indicate the Lord's uniqueness in perfection and His transcendence above resembling created beings: in His Essence, His Attributes, His Actions, and His judgment between people concerning their disputes.

The fourth: that he does not believe the judgment of one who rules by other than what Allah has revealed to be equal to the judgment of Allah and His Messenger, let alone believe that it is better than it; rather, he believes that it is permissible to judge by that which contradicts the judgment of Allah and His Messenger. This is like the preceding type, and what applies to it applies to this one as well, because he believes permissible that which has been established by clear, explicit, decisive textual proofs to be prohibited.

The fifth: and it is the greatest, most comprehensive, and most manifest of them in opposing the Sharī'ah, arrogantly resisting its rulings, opposing Allah and His Messenger, and resembling the Sharī'ah courts in their preparation, provision, establishment, foundation, branching, formation, diversification, judgment, enforcement, references, and sources. Just as the Sharī'ah courts have sources from which their rulings are derived, all of which ultimately refer back to the Book of Allah and the Sunnah of His Messenger ﷺ, these courts likewise have sources, namely: the fabricated law compiled from various religious laws and numerous legal systems, such as French law, American law, British law, and other laws, as well as the schools of thought of some Muṭtadi'ah who ascribe themselves to the Sharī'ah, and other such sources.

These courts, in many of the cities of Islam, are fully prepared and equipped, with their doors open, and people flock to them in successive waves. Their judges rule between them according to rulings from those laws that contradict the judgment of the Book and the Sunnah, impose them upon them, make them abide by them, and enforce them upon them... So what Kufr could be greater than this Kufr?! And what contradiction of the testimony that Muhammad is the Messenger of Allah could be greater after this contradiction?!

And the detailed presentation of the proofs for all that we have mentioned is well-known and established, but there is no room to mention them here in this discussion. So, O people of intellect, O groups of intelligent people and those possessed of understanding, how can you be content to have the rulings of those like yourselves, the ideas of your peers, or those who are beneath you, imposed upon you, those who are susceptible to error, indeed whose errors greatly outnumber their correctness? Rather, there is no correctness in their judgment except that which is derived from the judgment of Allah and His Messenger, whether explicitly or by deduction. Yet you allow them to judge concerning yourselves, your blood, your bodies, your honor, your families : your wives and children, your wealth, and all your other rights?!

And they leave and refuse to judge among you by the judgment of Allah and His Messenger, which cannot be touched by error, and to which falsehood cannot approach from before it or from behind it, a revelation from One who is All-Wise, Praiseworthy. And the submission and yielding of people to the judgment of their Lord is submission and yielding to the judgment of the One who created them, the Exalted, so that they may worship Him.

Just as creation prostrates only to Allah, worships only Him, and does not worship a created being, likewise they must not submit, yield, or surrender except to the judgment of the All-Wise, the All-Knowing, the Praiseworthy, the Compassionate, the Merciful, rather than the judgment of a created being : the one who is profoundly unjust and ignorant, whom doubts, desires, and misconceptions have destroyed, and whose hearts have been overtaken by heedlessness, hardness, and darkness.

Therefore, it is incumbent upon people of sound intellect to distance themselves from it, because of the enslavement it entails for them, and the control exercised over them through desires, ulterior motives, mistakes, and errors, in addition to the fact that it constitutes Kufr according to the explicit statement of Allah, the Exalted: {And whoever does not judge by what Allah has revealed—then it is those who are the disbelievers} [al-Mā'idah: 44].

The sixth: What many of the chiefs of clans and tribes among the Bedouins and others judge by, consisting of the customs and traditions of their fathers and forefathers, which they call their “salūm”. They inherit these practices from them, judge according to them, and encourage people to seek judgment from them when disputes arise, thereby maintaining the judgments of the Days of Ignorance and turning away from, and preferring other than, the judgment of Allah and His Messenger. There is neither might nor power except through Allah.

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As for the second category of the two categories of the disbelief of one who judges by other than what Allah has revealed : the category that does not expel one from the religion, it has already been mentioned that the interpretation of Ibn ‘Abbās رضي الله عنهما of the statement of Allah, Mighty and Majestic is He: {And whoever does not judge by what Allah has revealed—then it is those who are the disbelievers} [al-Mā'idah: 44], encompasses this category as well.

This is indicated by his statement, may Allah be pleased with him, regarding the verse: “Disbelief less than disbelief (Kufr Duna Kufr),” and also by his statement: “It is not the disbelief (Kufr) that you are referring to.” This occurs when a person’s desire and inclination drive him to judge in a particular case by other than what Allah has revealed, while he nevertheless believes that the judgment of Allah and His Messenger is the truth, and acknowledges that he himself is mistaken and has departed from guidance.

Although this type of Kufr does not expel him from the religion, it is nevertheless a great sin, greater than the major sins such as fornication, drinking wine, theft, the yamīn al-ghamūs (a deliberately false oath), and others. For a sin that Allah has called Kufr in His Book is greater than a sin that He has not called Kufr.

We ask Allah to unite the Muslims upon referring their disputes for judgment to His Book, in submission and contentment. Indeed, He is the Guardian of that and has power over it.

The Treatise has been completed, and all praise is due to Allah.